

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2026PRCE068662: IN THE MATTER OF ALBERT MORTEN JR.

07/31/2026 in Department J6

**Hearing on Petition for Appointment of Temporary Conservator of the Person and Estate
filed by Albert Morten III**

The court intends to appoint the PD as counsel for the proposed conservatee.

The Notice of Hearing (GC-020) was not personally served on the proposed conservatee.

Unless the court for good cause otherwise orders, Five days' service on those entitled to notice and five days' **personal service** on the proposed conservatee is required. (Probate Code §2250(e)(2))

Discuss good cause with the PD.

CI report - Not filed as of 07/30/26. (Probate Code §2250.6)

The court orders the CI to provide a report.

Petitioner states a temporary conservatorship is required to provide for temporary care, maintenance, and support.

Petitioner has not provided any other exigent circumstances requiring the appointment of a temporary conservator.

Petitioner does seek revocation of the authority of attorney-in-fact Cheryl L. Morten effective immediately (Prob. Code §4153) and revocation of the Durable Power of Attorney and Advanced Health Care Directive, appointing Yvonne Morten as agent, executed by proposed conservatee on 5/15/2026 due to the then-incapacity of the proposed conservatee/principal (Prob. Code §4206, 4155).

There are competing Petitions for Appointment of Conservator filed. Albert Morten, III's petition is set for 09/11/26 and Cheryl L. Morten and Yvonne Morten's petition is set for hearing on 10/23/26.

The court orders the hearing on Cheryl L. Morten and Yvonne Morten's petition advanced to 09/11/26.

The estate planning documents were executed on 05/15/26. The capacity declaration filed in this matter states that the proposed conservatee, as of 01/23/26 lacked capacity to give informed consent for medical decisions.

The court intends to order the Durable Power of Attorney and Advanced Health Care Directive suspended and appoint a neutral third party as temporary conservator.

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Temporary Letters to expire on 09/11/26.